

CHAPTER 7

Jus Post Bellum #2

Coercive Regime Change

“They can only be made to accept a new constitution of a nature ...
unlikely to encourage their warlike inclinations.”

*Immanuel Kant*¹

Last chapter we sketched out a general blueprint for post-war justice. While we included the rehabilitation of illegitimate state structures, we need now to explain and justify such assertions. What, if anything, justifies the deliberate overthrow of a regime at war’s end? Is setting out to do so from the start a permissible war aim? What should the old regime be replaced with? What are the relevant case studies? The questions keep coming in a torrent: how should post-war reconstruction proceed? Who is entitled to do what, and why? What are the rights and responsibilities of the overthrowing and occupying power, and what are those of the civil society which remains even after the regime has been liquidated?

It is unclear whether anybody has satisfying answers to all these questions. Yet we must consider them, not only out of intrinsic interest but also owing to the press of current circumstances: Afghanistan, Bosnia, Iraq and Serbia all feature ongoing processes of post-war reconstruction and regime change, and on some of them hang regional and even global security issues—threats of civil wars, border wars, failed states and terrorism—as well as concerns over imperialism, sovereignty and human rights. The goal of this chapter is to pose some sharp questions, and then to take a stab at some answers for these tremendously difficult problems.

Historical Examples

Forcible regime change is not at all a new thing. It is, in fact, a frequent occurrence in the history of warfare. This should not surprise us when we recall that warfare does, essentially, aim at how a territory is governed. Most of the wars of European colonial expansion, from 1500 to 1950, can be seen as wars of coercive regime change. The Europeans found “new” territories governed by locals (i.e., natives or aboriginals) and left them as lands ruled by European appointees, with European-style state structures. Probably the

main moral controversy surrounding forcible regime change in our day is whether it is the old, offensive colonialism under new guise. Is post-war reconstruction a cover for neo-imperialism?²

Against such accusations, there are two preliminary replies. The first concerns historical counter-examples. Some prominent historians, like Niall Ferguson, are presently arguing that some of the old European empires were not so terrible. The ancient Roman Empire brought peace, prosperity, civilization and technological advance to the entire Mediterranean world for hundreds of years. And the British Empire—Ferguson’s favourite example—likewise generated remarkable prosperity, political stability and cultural advance for its subjects. Indeed, some of the most developed and successful societies on earth are former members: America, Australia, Canada and the UK itself. And the benefits of the British Empire were not simply in terms of wealth and security but also, Ferguson says, important moral and legal values, such as individual liberty, free trade, the impersonal rule of law and parliamentary democracy. By population, the world’s two largest democracies are ex-Empire members: India and America. The record is marred by flaws, of course: the Empire early on was involved in African slavery; it lost America to revolution; and there were sore spots of protracted violence, including Ireland and parts of the Middle East. Ferguson does not deny such realities; he merely wishes to point out the other, positive side of the ledger. The words sound strange but, historically, empire has had some advantages.³

The second response concerns the fact that forcible regime change has occurred in contexts completely devoid of European imperialism. Regime change is not logically connected, of necessity, to what the British used to refer to—in superior terms—as “The White Man’s Burden.” Consider two recent examples. In Chapter 3, during our discussion of humanitarian intervention, I mentioned that in the mid-1970s, the communist government of Vietnam invaded Cambodia and overthrew the Khmer Rouge regime. This regime, an extremely radical communist outfit, had come to power through force and was determined to reshape Cambodian society to accord with the most severe revolutionary principles. Accordingly, it sought to liquidate all opposed to this order. It did so by instituting “The Killing Fields” of organized mass slaughter: one million Cambodians were murdered, and tens of thousands fled as refugees out of the country and into Vietnam. So Vietnam decided that both for its own security and stability—as well as perhaps for humanitarian reasons?—it had to change the Cambodian regime by force. So it did, and while the regime it helped to install there did not, and will not, win any human rights awards, it is hard to argue that it is not a clear improvement over the Khmer Rouge.

The next example, also from the 1970s, occurred in Africa. Uganda suffered under the dictatorship of Idi Amin. A paranoid tyrant, he tortured and slaughtered some 300,000 of his own citizens. This eventually sparked an armed uprising against him. Amin thought he could prevail by invading

neighbouring Tanzania and annexing a border province. The renegade ruler's strategy was to unite his own people behind him in the face of war with a foreign power—a war which, if won, would increase Uganda's size and resources. The plan backfired. Amin had wounded the people too much for them to support him. The president of Tanzania, Julius Nyerere, then decided to forge an alliance with Ugandan rebels, and together they forcibly overthrew Amin's regime. The resulting government was much as in the Cambodian case: not great but clearly morally better than an aggressive tyrant who was so brutally inhumane.⁴

America has also been deeply involved in forcible regime change—and not simply since World War II (much less Iraq). Indeed, the United States was founded in an act of forcible regime change during the Revolutionary War. It half-heartedly then, and again in 1812 (and even later in some circles), considered converting Canada by force into joining the republic. There was the bitter Civil War experience in 1861–65, which ultimately revolved around liquidating the Confederate regime and forcibly reconstructing it. The United States had many military entanglements in Latin America (especially Cuba and Mexico) as well as in Indonesia in the transition period from the 1800s to the 1900s, and several of those entanglements were attempts at forcing regime change. Some were successful, others not. The post-World War II experience gets almost all of the attention, and understandably so. It is the most recent era, and witnessed some spectacular successes as well as formidable failures. The reconstruction of Germany and Japan, from 1945 to 1955, probably count as the most successful and praiseworthy regime transformations in recent world history. On the other hand, the Bay of Pigs invasion of Cuba in 1961—trying to oust Castro's communists by force—was a complete and embarrassing flop. Somewhere in-between reside such other examples as the Dominican Republic (1965), Grenada (1983), Panama (1989), Haiti (1994), Bosnia (1995) and Afghanistan (2001). There are also controversial cases—where US involvement in forcing regime change was real but indirect—such as Guatemala (1954) and Serbia (1999). And of course there is the current case of Iraq. Before considering it, however, let's take a closer look at the Germany and Japan cases, since they shed so much light on: 1) when forcible regime change might be justified; and 2) how it might be successfully realized.⁵

RECONSTRUCTING GERMANY AND JAPAN

The settlement of World War II was not contained in a detailed, legalistic peace treaty. This was, partly, because Germany and Japan were so thoroughly crushed and had so little leverage. But World War II's settlement was sweeping and profound, with immense effects on world history. It was worked out, essentially, between America and the Soviet Union at meetings in Tehran and Yalta, but with participation from the UK, France, China and

other of the “lesser” Allies. Both Britain and France kept control over their colonies, but everyone knew that powerful forces of anti-colonialism—abetted by the exhaustion of England and France—would soon cause those old empires to crumble. As for the new empires, it was understood that the USSR would hold sway in Eastern Europe, ostensibly to serve as a barrier between itself and Germany, preventing another Nazi-style invasion. (It also provided for the export and spread of communist tyranny, unfortunately.) The USA, by contrast, would get Hawaii, a number of Pacific Islands, and total sway over the reconstruction of Japan. As for Germany, America, Britain, France and Russia agreed to split it, into Western and Eastern halves. Ditto for the German capital Berlin, which was otherwise entirely within the Eastern Soviet sphere. Within the Soviet sphere, police-state communism came to dominate as readily as it did in Russia. But within the West, there was a concerted effort to establish genuine free-market, rights-respecting democracies. In Japan, the same experiment was undertaken, but there the US military, under the firm leadership of Douglas MacArthur, held more direct control for longer than it did in West Germany.

The Allies, genuinely working with nationals in both countries—more so in Germany than Japan, perhaps—first undertook a purging process, which in Germany came to be known as “de-nazi-fication.” All signs, symbols, buildings, literature and things directly associated with the Nazis were destroyed utterly. The Nazi party itself was abolished and declared illegal. Surviving ex-Nazis—but not all of them⁶—were either put on trial, put in jail or otherwise punished and prohibited from political participation. The militaries of both Germany and Japan were utterly disbanded, and for years the Allied military became *the* military, and the direct ruler, of both Germany and Japan.⁷

After the negative purging process, the Allies in both countries established written constitutions or “Basic Law.” These constitutions, after the period of direct military rule ended, provided for bills and charters of human rights, eventual democratic elections and, above all, the checks and balances so prominently featured in the American system. Since government had grown so huge and tyrannical in both Germany and Japan in the 1930s, it had to be shrunk down, and then broken into pieces, with each piece only authorized to handle its own business. Independent judiciaries and completely reconstituted police forces were an important part of this—and they went a long way to re-establishing the impersonal rule of law over the personal whims of former fascists. The executive branches, much more so than in the American system, were made more accountable to, and closely tied to, the legislative branch. The goal, of course, was to ensure that the executive could not grow into another dictator. By design, there were to be no strong presidents. So Germany and Japan became true *parliamentary* democracies, more in the European than American style.

Western-style liberal democracy was not the only change forcibly implemented. The education systems of both Germany and Japan were overhauled,

since they played huge propaganda roles for both regimes and the content of their curricula had been filled with racism, ultra-nationalism and distorted ignorance of the outside world. Western experts redesigned these systems to impart concrete skills needed to participate in reconstruction, as well as to stress a more objective content favouring the basic cognitive functions (“the three Rs”), critical thinking and especially science and technology. The curricula were radically stripped of political content, though of course some lessons on the new social institutions and their principles were required.

The Americans quickly saw that their sweeping legal, constitutional, social and educational reforms would lack stability unless they could stimulate the German and Japanese economies. The people needed their vital needs met, as well as a sense of hope that, concretely, the future would get better. Otherwise, they might revolt, and the reforms fail. Here is where the really remarkable thing happened: instead of making the (World War I) mistake of sucking money out of these ruined countries through mandatory reparations payments, the Americans were the ones *who poured money into* Germany and Japan. America shunned the revenge paradigm and embraced the rehabilitative one. It was a staggering sum of money, too, channelled through the so-called “Marshall Plan.” Money was needed to buy essentials, as well as to clear away all the rubble and ruined infrastructure. It was also just needed to circulate, to get the Germans and Japanese used to free market trading. Jobs were plentiful, as entire systems of infrastructure—transportation, water, sewage, electricity, agriculture, finance—had to be rebuilt. Since jobs paid wages thanks to the Marshall Plan, the people’s lives improved and the free market system deepened. But it was not just the money. American management experts poured into Germany and Japan, showing them the very latest, and most efficient, means of production.⁸ Within 30 years, Germany and Japan had not only rebounded economically, they had the two strongest economies in the world after America itself, based especially on quality high-tech manufacturing (e.g., automobiles).

The post-war reconstructions of Germany and Japan easily count as the most impressive post-war rehabilitations in modern history. Germany and Japan, today, have massive free market economies, and politically remain peaceful and stable liberal democracies. They are both very good “citizens” on the global stage. They are minimally just, and much more in fact. In addition, these countries are by no means “clones” (much less colonies) of America: they each have gone their own way, adding local colour and pursuing political paths quite distinct from those that most interest the United States—consider especially Germany’s formative role in the European Union. So we have clear evidence that even massive forcible post-war changes need not threaten “a nation’s character,” or what makes it unique and special to its people. But such success *did* come at a huge cost in terms of time and treasure: it cost trillions of dollars; took trillions of “man-hours” in work and expertise; it took decades of real time; it took the co-operation of

most of the German and Japanese people; and, above all, it took the will of the United States to see it through. It was American money, American security, American know-how, American patience and American generosity which brought it all into being. Such is the magnitude of commitment needed by any party bent on implementing substantial post-war rehabilitation.⁹

Connecting Start and Finish

I have stated repeatedly throughout this work that the three phases of war (beginning, middle and end) are interconnected, and so should be the three categories of just war theory (*jus ad bellum*, *jus in bello* and *jus post bellum*). In particular, when it comes to *jus post bellum* it is axiomatic that if there was no justice at the start of the war, there will be no justice at the end. In other words, the less just your start of war, the fewer your rights in the post-war phase. Coherence entails that injustice in the beginning *infects* both the middle and end of war. It is hard to imagine—logically, causally and historically—a war which X began unjustly yet, when X won and imposed its will, that justice was somehow ultimately served. In those three senses, it seems more accurate to quip that it is “garbage in, garbage out”: decrepit inputs do not generate sublime outputs. So if we concern ourselves with justice after war, we must ensure we involve ourselves in a just war to begin with.

Some might ask: cannot we imagine a war unjustly begun, yet justly concluded? Some might say that America’s 2003 Iraq attack was unjustly begun, yet it was fought quickly and with reasonable adherence to *jus in bello*. (The prison tortures came later, during the occupation.) And if America succeeds in reconstructing Iraq, that is just, is it not? Compared to the calibre of the Hussein regime? Well, justice is not just about results, though of course these *are* important. Justice is also about not violating rights, and about following a certain procedure. *Jus ad bellum* violations *are* violations of rights, and it has always been my contention¹⁰ that we should understand each of the three just war categories coming together to form one long procedure which demands getting each step right before moving on to the next one. So, *jus ad bellum* failure corrupts the whole resulting project. We might therefore speak of Iraq being better off if—if—American-led reconstruction works, but not of it having been fully just if we seriously doubt, as I do, America’s inauguration of that conflict. In other words, even if it all somehow turns out well, that still will not make the original decision just; it will simply mean that the post-war situation was not as bad as it might have been.

The connection between the categories means that the only party with post-war entitlements regarding regime change will be the one which fought on the side of justice to begin with. As Kant said, the raw fact of military victory only changes the power situation; it does not, and should not, change our *moral* assessment of the war, which is at the level of enduring principle and not merely of contingent power.¹¹ There is no guarantee the just side will

actually win, of course, but it is quite another thing—surely, a mistaken thing—to interpret victory in war *as itself imbuing* the war or post-war measures with moral value. Nazi Germany won the Blitzkrieg phase of World War II, yet this hardly justifies what it subsequently did to Poland, Scandinavia, the Netherlands and France. The Communists, in the early- to mid-1900s, won their civil wars in Russia and China, but that does not justify how they later governed those territories. And so on.

As I argued in Chapter 3, the American-led war of regime change against the Taliban in Afghanistan satisfied *jus ad bellum*, whereas that against Saddam Hussein's regime probably violated it. Why? In the first war, in late 2001, strong evidence showed the Taliban provided state sponsorship—of resources, weapons and safe havens—to the terrorist group al-Qaeda, which had just committed aggression against America on 9/11. The Taliban did so because it shared al-Qaeda's radical Islamist ideology, which mandates the violent take-over of all governments in traditional Arab lands and their conversion into strict Islamic theocracies wherein there is a unification of church and state modelled after the Taliban's Afghanistan or, to a lesser extent, Iran. These groups despise the West because it is not Islamic and particularly target America because of its support for Middle Eastern regimes they would love to overthrow, in particular Saudi Arabia (the holy land of Islam) and Israel (which they claim is on traditional Arab land). Most just war theorists, and twenty-eight other countries, agreed with America that it was just to respond with force when the Taliban refused to hand over al-Qaeda suspects in November 2001. Owing to that large consensus on the justice of the start of that war, we can speak meaningfully of large post-war entitlements of the Allied force in Afghanistan.

Regarding Iraq, only seven countries agreed with America, and I think a majority of just war theorists disagreed with the war. International lawyers were perhaps the most incensed of all, since no clear Security Council vote was held. In Chapter 3, I argued that the main cause of the war—pre-emptive self-defence against an imminent WMD strike by Iraq or Iraq-supplied terrorists—was not proven to the degree it had to be. While I did admit that armed humanitarian intervention was the best cause for that war—Saddam's regime not being minimally just—it clearly was not the shot being called and, besides that, the attack ran afoul of issues of proper authority, last resort, probability of success and proportionality. So I must conclude that post-war entitlements in the Iraq case are much smaller than in the Afghanistan case. But even though I believe America has few if any rights in post-war Iraq, this does not mean I think America should just up and leave. That is because I endorse the much-publicized "Pottery Barn Rule": *if you break it, you buy it*. In March–May, 2003, America broke Iraq—there can be no doubt about that—and that act brought with it separate responsibilities to help put Iraq back together. In other words, America has few rights, but many duties, regarding post-war Iraq. This means that it still makes sense to hold America

to standards, such as aiding the creation of a minimally just community in Iraq. Even if I think the Iraq war unjust, and thus cannot ever pronounce America's post-war policies fully just, I can—we have established—still pronounce them *better or worse*, according to the extent to which they would satisfy the ideal, had the inauguration of the conflict been different.

The Goal of Just Regime Change

Before considering in detail what is going on in Afghanistan and Iraq, let's speak of the goal of justified regime change in general. The goal of justified post-war regime change—whether permitted by rights or demanded by duties—is the timely construction of a minimally just political community. As we saw in Chapter 2, such a community makes every reasonable effort to: 1) avoid violating the rights of other minimally just communities; 2) gain recognition as being legitimate in the eyes of the international community and its own people; and 3) realize the human rights of all its individual members. We provided there a justification for having this standard, and we recall it here since the imposition of any standard in the post-war environment is such serious and controversial business. The ideal of a human rights-respecting, minimally just political community is a justified one because:

- ♦ It is in every individual's self-interest;
- ♦ It respects everyone's potential for autonomy and self-direction;
- ♦ It thus has universal appeal;
- ♦ It already enjoys very strong international consensus;
- ♦ It is based on thin, reasonable and accessible values like living a minimally good life;
- ♦ It generates good consequences, especially in terms of average quality of life; and
- ♦ It promotes long-term international peace and stability.

It is these values—their strength and moral resonance—which ground regime changing measures in a post-war environment. These are not extreme, narrow, "Crusading," or "imperialistic" values; they are modest, secular, widely accepted and based on appeal to the first principle of respecting individual rights as well as to after-the-fact considerations of generating concrete beneficial consequences for everyone. Let's now examine in some detail how well the ongoing reconstruction processes in Afghanistan and Iraq are faring, relative to these standards and goals.

Afghanistan and Iraq

Just as with Germany and Japan, American-led Allies in Afghanistan and Iraq have invoked the need for disarmament and demilitarization. This is consistent

with the first criterion of making any newly reconstructed government one which will not commit aggression and will generally be respectful of its neighbours. But note that when you so demilitarize a country, this implies a duty on your part to fill in the gap and provide for that society effective military and police security from domestic as well as international threats. There are huge difficulties, at present, with satisfying this condition both in Afghanistan and Iraq.

In Afghanistan, its capital Kabul has been rendered fairly secure by the international force. But the same cannot be said of the rural parts of the country and emphatically the south-eastern portion near the Pakistan border. In that section, in fact, there is still something of a hot war—a live-fire armed conflict—between the remnants of the Taliban and al-Qaeda, on the one hand, and, on the other, the international Allies. Clearly, a country with a small-scale war within its borders is not entirely demilitarized and secure. Plus, there is the issue of the “warlords.” Afghanistan is a society strongly structured on the basis of ethnicity and clan (or extended family). The warlords are heads of clan, who jealously guard their family’s traditional territory with their own private, family-manned armed militias. These groups have not been disarmed either and could, if they all got together, challenge the power and authority of the new Afghani government. Thus, there is some, but little, success on the security front so far in Afghanistan.

That would be a huge overstatement in connection with Iraq, where security threatens to become a black hole into which every other post-war issue gets sucked and lost. Saddam’s regime collapsed in May, 2003—much more quickly than the Americans predicted. US Defense Secretary Donald Rumsfeld ordered the disbanding of the Iraqi military a month later, when the US stepped in to provide direct military rule. The armed insurgency—or guerrilla war—started a month after that and is ongoing. Who are the insurgents, and what do they want? There are different groups, and they want different things. First, there are the “Hussein hold-outs,” remnants of Saddam’s regime who want the Americans out and some form of traditional Sunni clan dominance re-established in Iraq. Next are the radical Islamists who oppose US-led reconstruction because it will not let them institute a strict Islamic theocracy in Iraq. Finally, there are some foreign fighters, especially from Iran and Syria, who do not want to see the Americans succeed in structuring a pro-Western regime on their borders, lest it undermine their own authoritarian rule back home. Most of the insurgents fall into the first category, and as a result the most dangerous place in Iraq is the so-called “Sunni triangle” in the middle of that country, centred around Baghdad.

Some background: Iraq is mainly made of three groups: the Kurds in the north; the Sunni Arabs in the middle; and the Shi’ite Arabs in the south. Shi’ites form the majority and they tend to be more conservative and strict in their religious beliefs than Sunnis. Sunnis, while a minority, have traditionally held power in Iraq. Saddam was Sunni, for instance. The Kurds have

always considered themselves their own people, and would prefer their own state to continued life in Iraq. The Kurds thus welcomed the US invasion, and the Shi'ites (while not fans of America) view the post-war situation as an opportunity to pull power back from the Sunnis. But the Sunnis see themselves as having the most to lose, and thus deeply resent the American war and occupation. So they form the bulk of the insurgency and their territory is rife with severe post-war violence (if indeed we can even call it "post-war"). Thousands have been killed, and tens of thousands injured, in the continuing Iraq insurgency.

The daily attacks and bombings shred to bits any claim that post-war Iraq is secure. Most military experts say it is a problem of insufficient force size on the part of the Americans—not enough "boots on the ground." This is partly because Saddam's regime collapsed so quickly, accelerating the transition from war to post-war before the Pentagon could catch up. But the Bush Jr. Administration's solution, thus far, has been to avoid increasing troop intake from back home—since that would be unpopular, and perhaps be perceived as a sign of weakness or error—preferring instead to train a new Iraqi army to fill the gap. This new-fangled Iraqi army and police force—many of them poor young country boys with few other job prospects—are the main targets of insurgent violence. This is smart strategy on the insurgents' part: they can cause the Americans to fail without actually attacking them. Here is where analogies to Vietnam actually become apt.

Vietnam became a long, bloody trap for America because it was confronted with an impossible dilemma: *it could not win, yet it could not leave*. Something similar may happen in Iraq. America may not be able to win because: 1) it cannot increase American troop levels, for domestic political reasons; and 2) it cannot train sufficient Iraqi troops and cops, because these get immediately targeted and taken out by the insurgents. So, the ongoing insecurity and violence prevents progress on all the other fronts (e.g., political and economic) and what you have is a recipe for an indefinite guerrilla war, which in Vietnam stretched for decades. But America cannot yet leave, either. Why? Because it rightly fears that, should it pull out of Iraq in the near future, what will result will be at least as bad as Saddam or quite possibly a lot worse—which would call into question the point and sense of the entire war. The situation in Iraq is so insecure that, should America leave too soon, the three groups might start fighting each other in a civil war over territory, religion, oil and ethnicity. Or a dictator just like Saddam could take over. Or religious zealots like the Taliban could come to power. Or any combination of the above. These are fearsome prospects, and not at all remote possibilities. America remembers that, when it left South Vietnam, the communists promptly took over—the very thing America went to war to prevent in the first place. America also knows it lacks clear, widespread popular support in Iraq, which is exactly the same as in Vietnam and totally unlike the German and Japanese cases.

What about the second criterion of a minimally just government: that it be recognized as legitimate by the international community and, above all, by its own people? International recognition is probably easier and clearer. Usually, it involves things like extending “diplomatic recognition” to the country, by sending and receiving ambassadors and by opening embassies. It also involves welcoming that country into international events and associations, in particular the United Nations. Finally, offering that country money for aid in reconstruction is another sign you recognize its legitimacy and wish to help it. There has been some obvious success here, both in Afghanistan and Iraq. Many countries have reopened their embassies there, and restaffed their diplomatic posts. Both countries continue as UN members, and have been welcomed back into such international events as the Olympics. Thankfully, both countries are also receiving reconstruction monies from around the world, both in the form of direct cash payments and indirect debt forgiveness.

Domestic legitimacy is more important, and trickier. In both Afghanistan and Iraq, the Americans launched similar processes of constitution-building, interim government formation, and subsequent popular elections. In Afghanistan, the clans came together to work out an interim constitutional and government formation, and the first elections were held in October, 2004. The interim president, Hamid Karzai, was reaffirmed as president in elections most international observers agreed were free and fair. Just as vital, the elections were not seriously challenged by rival clan leaders. In December 2005, a more enduring elected parliament was sworn in, and it features plural membership from different regions, clans, interests and genders. These are all real achievements, and we should not let the bleak security scene diminish them.

A similar policy was launched in Iraq—though America did have direct martial rule there between June 2003 and June 2004. The groups agreed on an Iraqi Provisional Authority, an interim constitution and elections. These latter, held in January 2005, produced a resounding defeat for the interim prime minister Allawi. Instead, the Shi’ites (as the majority) won the most seats in the National Assembly, followed by the Kurds and then the Sunnis. While there is no denying these real political achievements, serious challenges remain. Of particular concern is the role of the Sunnis, formerly the most powerful and currently the most aggrieved group. The Sunnis barely participated in the January election, for two reasons: 1) to withhold their consent deliberately; and 2) to avoid insurgent violence (in fact, six towns could not vote at all because they were controlled by insurgents). So how legitimate are elections when one major group barely participates?

The newly-elected, Kurd- and Shi’ite-dominated, government confronted the very difficult task of replacing the merely interim constitution with an enduring one, submitting it for referendum approval in October, 2005, which it achieved. Democratic elections were held in December 2005—popular turn-out was quite high—and, as of writing, the results are not in. While the

Sunnis *did* participate in these December elections—apparently out of fear of being frozen out entirely—there remain concerns that the new enduring constitution excludes them nonetheless.

The document enshrines federalism for Iraq, which seems sensible: the only way to keep the three groups together is not to have them be too close, and constructing a federal government which acknowledges strong regions and provinces with considerable autonomy fits the bill perfectly. But does the document create such strong regions that Iraq will eventually unravel into three separate states? And does that matter? Well, it does if the unravelling will lead to war. Another sore spot is the division of oil revenue, which the new constitution says should be done with an eye to giving more resources to “traditionally disadvantaged” regions of Iraq: the Kurd and Shi’ite parts. While that does seem historically fair, the Sunnis of the present day are unlikely to be satisfied and this is a definite flashpoint of anger. The big political issues in Iraq today are thus: how well will the newly elected federal government deal with these serious group rivalries, and will the constitution create unity or rather division and conflict?¹²

We come to the third criterion for a minimally just government: reasonable efforts at human rights realization. How well are things going in Afghanistan and Iraq, under the five major human rights headings of: security; liberty; subsistence; equality; and recognition? Of security, we have already seen plenty, and know that thus far it is a failure. Of liberty, some genuine advances can be reported. In both cases, there has been real political participation—elections—where previously there was none. In terms of free speech, new newspapers have sprouted in both Kabul and Baghdad, and satellite dishes (for accessing foreign media) can now be purchased. Freedom of religion, in Afghanistan especially, is much better now than under the repressive Taliban. But the more entrenched aspects of securing personal liberty—namely, the rule of law and due process rights in criminal matters—take decades to develop, and thus have not yet been realized in these countries.

In terms of equality and recognition, giant steps have been made for girls and women in Afghanistan compared to under the Taliban, when they were not even educated and were denied full legal personhood. Indeed, Afghanistan’s new elected parliament contains many women. A possible recognition concern in Iraq, and I guess Afghanistan, too, concerns whether the various groups will continue to recognize each other as respected partners in constitution-building. Historically, in both countries the different groups and clans have had a difficult relationship, to say the least.

Subsistence poses challenges, especially for Afghanistan. War-torn since 1979, Afghanistan is one of the world’s poorest countries, where average life expectancy is 46 and illiteracy runs at 65 per cent. Of particular concern is the rebirth of the narcotics economy, which the Taliban repressed for religious reasons. Afghanistan is the world’s largest supplier of poppies, the main

ingredient in opium. Now that the Taliban are gone, drug enforcement is lax, and impoverished farmers are growing poppies again, for which they can get much more money than legal crops like potatoes or beans. Figuring out how to suppress the drug trade—which actually strengthens the local warlords—is both an economic and security issue. Societies dominated by drugs (e.g., Colombia) are always crime- and gang-infested, and very violent.

Iraq has more resources than Afghanistan—notably, oil—and has a more sophisticated population, but there are subsistence problems here, too. As of writing, unemployment in Iraq is over 40 per cent, which is shockingly high. Iraq has also been at near-constant war since 1980, and faces massive and lingering reconstruction needs and costs. Recent foreign investment is encouraging, but is it enough? Experience shows that the people must feel a clear improvement in their economic situation comparing post-war to pre-war; if they do not, reconstruction will fail and war may erupt again. In other words, by about 2007–8 Iraqis must definitely feel they are better off than they were under Saddam, or the whole reconstruction project might end up in miserable failure.

The upshot is this: by the three criteria of minimally just communities, it is deeply unclear whether reconstruction in Afghanistan and Iraq is succeeding. It might be too early to tell but there have been some obvious failures, notably security. While there have been some successes, they have mainly been achieved in politics and personal freedoms. The reconstruction of the economies poses huge challenges going forward.

Back to the Ideal

It is important to consider these real-world—and very relevant and timely—cases of post-war reconstruction, and measure them up to our ideals and standards. But it must be stressed that the serious problems in Afghanistan and Iraq do *not* show that forcible, progressive post-war regime change cannot actually be done, and so we must abandon the effort. *Successful coercive post-war regime change was actually done in Germany and Japan, and so it is neither conceptually nor empirically impossible.* In fact, a review of the literature shows something of an ideal 10-point recipe for transforming a defeated aggressor into a minimally just regime.

Before sketching out this recipe, consider Kant's interesting and provocative opening quote. He clearly believed forcible regime change permissible. His moral test involved considering whether one's policies or actions would, if everyone else did the same thing, lead to contradiction or inhumanity. A brutal, rights-violating state obviously acts inhumanely, and if all states behaved like aggressors it would "make peace among nations impossible." Thus, states failing minimal justice forfeit rights of existence. Kant hastens to add, however, that other states should not simply carve up and "ingest"

the offending state and its territory, since that would ignore completely the wishes and rights of the local population. The local population *does* have the right to exist as a people, but it *does not have* the right to establish an aggressive or rights-violating state. Kant concludes that the most reasonable, *middle-ground* solution is that the people stay together as a people but they must accept a new, “less war-like constitution.” Forcible regime change is actually a sound compromise between the two extremes of conquest, on the one hand, and, on the other, letting terrible regimes exist and thrive.¹³

This puts the vital issue of entitlement nicely: regimes which are not minimally just have no right to govern, and so are in no position to complain should they be overthrown. But what about the right of the people there to be self-governing? National self-determination is not an end in itself; it is good only insofar as it results in a minimally just society. A people never have the right to establish an aggressive or human rights-violating regime, any more than a crook has the right to beat up people as a form of his “freedom of expression.” We can imagine cases—indeed, know of cases—where a people lack the means for constructing a minimally just society. Perhaps they lack the resources and expertise, are deeply divided, have been exhausted by war, or flat out refuse out of blinkered nationalism or ideology. In all these cases, they can justly be forced to accept a new, minimally just regime in the post-war period *provided* the war was just. If the war was not just, they cannot be so forced but they should certainly be helped if they freely request it. Owing to the power of the idea of a minimally just political community, we should not be surprised to see locals clamouring for this option and for help. The new regime must then eventually get endorsement and show its local legitimacy—ideally through direct election—and then that effectively cements its right to govern. If the locals still do not like it, they can turf the government out and start again—but always within the confines of minimal justice.

So, and this is the heart of this chapter, forcible post-war regime change is permissible provided: 1) the war itself was just and conducted properly; 2) the target regime was illegitimate, thus forfeiting its state rights; 3) the goal of the reconstruction is a minimally just regime; and 4) respect for *jus in bello* and human rights is integral to the transformation process itself. The permission is then granted because the transformation: 1) violates neither state nor human rights; 2) its expected consequences are very desirable, namely, satisfied human rights for the local population and increased international peace and security for everyone; and 3) the post-war moment is especially promising regarding the possibilities for reform. And the transformation will be successful when there is: 1) a stable new regime, 2) run entirely by locals, which is 3) minimally just. The 2003 Dobbins Report, based on extensive historical evidence, suggests that this kind of success probably takes from seven to ten years to achieve.¹⁴

The Recipe

According to sound empirical research analyzing the cases,¹⁵ the core blueprint for transforming defeated, rights-violating aggressor regimes into stable, peaceful, pro-rights societies is:

- ♦ *Adhere diligently to the laws of war during the regime take-down and occupation.* This is morally vital for its own sake, as well as to help win the hearts and minds of the locals. America, of course, has notoriously run afoul of this principle in Iraq owing to the prisoner abuse scandal at the Abu Ghraib prison.

(Speaking of the laws of war, there is a body of rules referred to as “occupation law” but it is much in dispute, even regarding whether it is still in force. As Simon Chesterman explains, occupation law demands that any occupation be temporary. It does allow occupation forces to defend themselves. And it requires that the occupier provide for civilian well-being, especially in connection with vital needs and basic infrastructure. But it stridently stipulates that the occupier *not* change any of the existing laws or structures within the occupied society. So, Chesterman observes, occupation law “provides little support for regime change.” Thus, this 10-point recipe is in the domain of just war theory and political philosophy, not international law. Yet, not entirely so, since the UN Security Council has authorized recent regime-changing actions in Afghanistan, Cambodia, East Timor and Kosovo, so perhaps the principle is not completely foreign to international law. Additionally, what if the war causes the existing state structure to collapse? It seems irrational to suggest that the occupying power may not change such a condition of destroyed rubble: surely such change could only be for the better. And what about those cases of truly abhorrent regimes, like the Nazis or Khmer Rouge? The old ban on changing regimes seems predicated on a belief that the existing state structures do not have anything seriously, irredeemably wrong with them. But we know that is not always true. And so the clarity and utility of occupation law is much to be wondered at, and that is why here we focus on theory.)¹⁶

- ♦ *Purge much of the old regime, and prosecute its war criminals.* Much, but not necessarily all. Clearly, anyone materially connected to aggression, tyranny or atrocity cannot be permitted a substantial role in the new order. They have lost the right to govern. But others—say, middle-ranking civil servants—might be kept on for their local knowledge and bureaucratic expertise. There always needs to be some continuity, even in the face of a sea change in institutions.
- ♦ *Disarm and demilitarize the society.* The target military does need to be disarmed and demobilized—but then something needs to be done with them. Many critics of the American occupation of Iraq argue that a key decision which helped spark the ongoing insurgency was the US choice

to promptly disband the 400,000 strong Iraqi army—and then leave them to their own devices. Plans for employing these potentially dangerous men, providing them opportunity, should have been developed. Some of them—not so much the officer class as ordinary soldiers—might even be selectively re-mobilized under a reconstituted command structure.¹⁷

- ♦ *Provide effective military and police security for the whole country.* Most experts suggest a two-stage approach here: the successful “attack and overthrow” war divisions be replaced by other divisions *specifically trained* in post-combat peacekeeping and nation-building. Whether this latter force should be multinational, or UN-led, is taken up below. But the transition should be as seamless as possible, and the ratios are crucial. The nation-building research shows you need about 20 soldiers per 1,000 residents to stabilize and secure post-war populations. (Incidentally, both the Afghanistan and Iraq occupation forces are—as of writing—well short of this ratio.) The moral is to go in big, with plenty of “boots on the ground,” boots tutored in what The Pentagon labels “stability operations.” Show the locals strong—not hesitant—intentions to protect them and to provide a secure backdrop for the development of law and legitimacy.¹⁸
- ♦ *Work with a cross-section of locals on a new, rights-respecting constitution which features checks and balances.* Limited government is required to prevent regrowth of tyranny; legitimate government is needed both for moral fitness and for stability. The picture here is of a genuine political partnership between the war winner and the local civilian population. The facts show that *the meaningful participation and support of both is absolutely necessary*, and usually more extensive international participation is desirable as well. Constitution-making is a process, and so we cannot rationally expect perfection or closure the first time out. Even the most developed societies occasionally change their constitutions and/or take several tries before creating a workable one in the first place. So while the post-war atmosphere is pressured, and there is a desire to rapidly end foreign occupation, some patience is required on the part of everyone. Good things often take time. In terms of inclusion in the constitution-building process, Andrew Arato reminds us that every group must be included: 1) whose non-participation could ruin any subsequent arrangement; and 2) who is committed to the creation of a minimally just state. If these two conditions are met, all relevant groups—as guided by the war winner—are to develop an inclusive framework for limited, accountable and rights-respecting government.¹⁹
- ♦ *Allow other, non-state associations, or “civil society,” to flourish.* Civil society associations refer to all groupings which do not involve the state. They range from chambers of commerce to little league sports associations and from churches to music societies to fan clubs for “The Simpsons.” Research stresses how important such associations are, not only

to enjoyment of life but also to people's commitment to their society. These groupings connect people to each other, provide satisfaction and promote non-political aspects of life. They serve to take pressure off the state (by providing diverse outlets for energy), they help to legitimize the society (by increasing participation and happiness) and they also indirectly limit state power (by showing there is more to life than politics). It is always the mark of a tyrannical government when there is little activity within civil society. Robust civil societies are thus an important ingredient in creating mature, legitimate social conditions.²⁰

- ♦ *Forego compensation and sanctions in favour of investing in and rebuilding the economy.* In the last chapter we saw that many modern peace arrangements—notably the Treaty of Versailles and the terms ending the Persian Gulf War—unravelling, or created perverse consequences, when they included hefty compensation terms and sweeping sanctions.²¹ Targeted compensation might still be justified but, beyond that and war crimes trials, punitive settlements do not seem to work. The goal of proper regime change is the creation of a stable, minimally just social condition. This is difficult enough as it is; trying to achieve it while sucking resources out of the target country becomes nigh impossible. Thankfully, in Iraq in 2003, the old punitive sanctions were dropped, and investment started to flow in. This need for funds is a strong argument for including international partners in reconstruction. Realistically speaking, though, such partners will probably volunteer their resources only if they believe the war was justified to begin with.
- ♦ *If necessary, re-vamp educational curricula to purge past propaganda and cement new values.* The fascists in the 1930s used school systems to warp future citizens so that they would subscribe to highly destructive doctrines of racial and national supremacy, with the flip-side being hatred and aggression against “Others.” In Afghanistan under the Taliban, and elsewhere still in the Middle East, great controversy attaches to the teaching of Islamic extremism and its attitudes towards violence, Israel, the West and women in particular. Much development research powerfully shows the beneficial effects of massive commitment to the education of girls and women. Indeed, some have even pronounced this one of the few “silver bullets” in development, which correlates very strongly with such other desirable social outcomes as economic growth, life expectancy and internal political stability.²²
- ♦ *Ensure that the benefits of the new order will be: 1) concrete; and 2) widely, not narrowly, distributed.* As Michael Walzer says, you have got to increase *everyone's* stake in the new, developing order. In particular, you must avoid a situation where it seems that the foreign occupier is favouring one group above the rest, giving that group most of the power. That group will soon be marked as traitors and foreign agents, and will lose legitimacy and popular support. This was frequently the

case during the European colonial era—particularly with France and Belgium—when the colonizer would select an elite group to rule, creating bitter ethnic and communal rivalries which persist today. The reconstructions of Germany and Japan showed, by contrast, that there must be widespread concrete benefits distributed throughout the population to make reconstruction work. Political things like getting to vote and run for office where you could not before; civic things like having your daughter go to school where before she could not; social things like starting up reading clubs where they used to be banned; and, above all, economic things like an average rise in living standards within a reasonable time.²³

- ♦ *Follow an orderly, not-too-hasty exit strategy when the new regime can stand on its own two feet.* This requires walking a fine line. On the one hand, the foreign occupier cannot stay forever—for that is conquest, not reconstruction. The locals must see that occupation will come to an end and they will return to full sovereignty. This knowledge should diffuse some tension. On the other hand, if you're going to do something as important as post-war rehabilitation, you should try to do it well. Plus there is a moral responsibility not to “cut and run.” A botched reconstruction benefits no one, including impatient locals. While the Dobbins Report suggests seven years as a minimum timeline, that does not necessarily mean seven years of direct martial law. Room for creativity is possible, and that is the route chosen by the Americans in Iraq. Direct military rule lasted only for one year, and during that time a constitutional process was launched. Absolute US control ended by July, 2004, and has been replaced by a mixture of political sovereignty for the new Iraqi government combined with robust US military presence to guarantee security. Once the latest election results are in, we'll see what new negotiations take place between Iraq and the US on phasing out American presence entirely.

This ten-point recipe for reconstruction is only a general blueprint; clearly, in particular cases, some things will need to be emphasized over others. The best recipes always allow for individual variance and input depending on time and the ingredients at hand. We should also note the heavy interconnectedness of many of these elements. US Major-General William Nash is probably only exaggerating a bit when he declares: “The first rule of nation-building is that everything is related to everything, and it is all political.”²⁴ Further, in spite of the variances among aggressive, rights-violating societies—different geography, history, language, economy, diet, ethnic composition—there has been striking similarity in the kind of regime here in view. Think of the major twentieth century aggressors and dictatorships: the USSR; Fascist Spain and Italy; Nazi Germany; Imperial Japan; North Korea; Communist China; Pol Pot's Cambodia; Idi Amin's Uganda; Saddam Hussein's

Iraq; the Taliban's Afghanistan. In spite of all the differences among them, the regimes shared large affinities: a small group of ruthless fanatics uses force to come to power; it keeps power through the widespread use of violence, both internally and externally; it engages in massively invasive control over every major sphere of life, with no other associations allowed to rival the state's prestige; the rule of law is jettisoned; the military, or "in-party," becomes all-important; human rights are trampled upon, and so on.²⁵ To a remarkable extent, in spite of all the other differences, *it has been the same kind of regime*. And this should not, in the end, come as so much of a surprise: they all learned from each other and sought to emulate what worked elsewhere. The modern police state only has so many precedents to draw upon, and might in fact be located ultimately in such early examples as Napoleonic France, or most probably Robespierre's Reign of Terror during the French Revolution.²⁶ So, then, we should not be all that shocked, surprised and sceptical if it turns out that one general recipe can, in fact, be found for transforming such regimes and societies away from rampant rights-violation into ones which are at least minimally just.

Knowing versus Doing

Al Pierce has noted that there is a difference between *knowing* what to do, and actually *being able* to do it. In other words, even if we do know the general recipe for pro-rights reconstruction, there is still the issue of whether we are able to implement that knowledge in particular instances. In Iraq, for example, there has been quite fierce armed resistance to both American and Iraqi attempts to implement the general recipe there. This does highlight the distance between the ideal and the real, which can never be ignored in international affairs. I agree with the moral logic of Pierce's position but it is hard to state what it finally means for the thesis advocated here. We cannot be overconfident of success; we must expect resistance and impatience; and we must meaningfully involve the local population in the reconstruction of its own regime. *But there have been actual cases of successful pro-rights, post-war reconstruction*. We think of Germany and Japan post-World War II especially. These cases have even occurred in social contexts—like Japan in 1945—with no appreciable background commitment to any of the needed attitudes, habits and values. So it *can* be done; there is no abstract, sweeping "can't." Perhaps it cannot be done in particular cases—but how are we to know without trying? Pierce's point is important, and rightly cautionary. But it does not show that post-war rehabilitation should not be tried at all, or that it is misguided in principle. We can still have it as our ideal plan, even if it turns out we can only partially realize it in particular cases.

Some also say that the process imagined here is only going to work in very rare cases, like Japan and Germany, wherein the target country was completely crushed during the war. In this sense, pro-rights reconstruction

still “cannot be done” in the majority of cases, where there is less-than-total victory. The locals simply will not agree to it.²⁷ Fortunately, this view is sceptical speculation, with shaky empirical backing. Consider that right now there are ongoing pro-rights, post-war reconstruction processes underway in Afghanistan, Bosnia, East Timor, Kosovo and Iraq. None of these regimes—especially in Bosnia—were defeated as singularly as Nazi Germany and Imperial Japan. Yet they all find themselves on the same road to reconstruction. Now, there *are* real difficulties: the insurgency in Iraq and the lack of control over rural Afghanistan especially—and the group rivalries within both. But there have also been real successes, especially in Bosnia-Kosovo and East Timor. New institutions, based on human rights, are developing; there is relative stability and peace; there have been free elections and, in the case of Bosnia and East Timor, there is almost fully restored sovereignty. Bosnia and East Timor have been utterly transformed from societies bloodily battered by foreign invasion and civil war to peaceful, near-sovereign nations. Admittedly, there is a shorter timespan with these cases, so we cannot pronounce them successes on the order of a Germany or Japan, but they clearly offer support for the thesis that post-war rehabilitation is possible *even without* achieving crushing military victory, unconditional surrender and total sway over the local population. The locals in Bosnia and East Timor *did agree* to the values of post-war reconstruction here in view, and so again we see the incorrectness—the easy, fashionable pessimism—of the notion that the locals will not go for it, that it simply cannot be done. No one enjoys foreign occupation, to be sure. But most people can see that it is *the quality* of governance which matters most, not *the source of its genesis*. If a foreign source can help create a minimally just society where none existed before, it cannot rationally be rejected merely on grounds of foreign participation. Indeed, if you look back far enough, it is hard to think of any country which has not had some “foreign” contribution to its political structure. (Consider the USA itself, and the role that American Indians, British and French had on its founding structures—and waves of foreign immigrants have had on its society.) The point is that the process be *just*, not that it be “purely local” in its origins.²⁸

Who’s in Charge?

This leaves the large issue of who should be the main players in post-war reconstruction. The war winner? The international community? The locals? The Dobbins Report, interestingly, finds in repeated cases that the commitment, presence and investment of *the war winner* is most necessary to the success of post-war reform. That is apparently a fact of which we need to be mindful. There is also the value of the goal of minimal justice and our desire to see it actualized, which calls our attention to these power realities. Another fact is this: reconstruction needs to take place within a secure context,

and the war-winner is clearly best positioned to provide this—at least initially. There is the relative responsibility argument, too: the war winner, after all, was the one who overthrew the regime. Having “broken it,” the war winner “bought it” (i.e., shouldered the main responsibility for aiding the reconstruction of a replacement regime).

This is *not* a clarion call for triumphant unilateralism, much less “neo-imperialism.” It is a judgment informed by: 1) the facts of who can secure the society; 2) who most bears responsibility; and 3) who can effectively leverage successful post-war regime change. Clearly, local involvement and endorsement is, eventually, a make-or-break deal. Given the good values of just reconstruction (compared with what went before), we should not worry about finding such support. Indeed, the cases show there are many locals to be found, in every society, who see the sense of minimal justice and who wish to take up leadership roles in the reconstruction process. It is more an issue of *when* and *how* to transfer reconstruction authority to a reconstituted and legitimate state structure, and that is clearly to be determined on a case-by-case basis. Local input—meaningful cross-sectional consultation—has to be there right from the start, and gradually grow to fully restored sovereignty, probably about ten years later. The war winner must always understand—as Chapter XI of the *UN Charter* (which deals with “Non-self-governing territories”) says—that it occupies a position of “sacred trust” in this regard. The war winner cannot ever forget, as the International Commission on Intervention and State Sovereignty (ICISS) says, that its reconstructive activities must be aimed at “putting itself out of a job.” The war winner’s authority lasts only as long as the trust remains earned and the rehabilitative task—as defined here by the recipe—keeps progressing in the direction of minimal justice.²⁹

What role should the international community play? Both watchdog and junior partner. Watchdog, to ensure that the power enjoyed by the war winner does not corrupt. And junior partner, in that sensible war winners will want to reach out and receive additional resources as well as world wide expertise in the various fields of social reconstruction. The war winner should not have problems attracting such outside aid *if* the war itself was just. There is, for example, a large international presence in the reconstruction of Afghanistan. Nor should the international community hesitate to provide such aid, since it is not just a matter of charity but also of improving the peace and security of themselves and their own people. America, obviously, is having some problems in this connection with Iraq. Non-aid from erstwhile international allies is understandable—not wanting to reward and legitimize what they see as an unjust war. However, such allies cannot forget that the Iraqi people pay the price for such non-provision as well. I do not think non-aid violates a duty here but these consequences should still be kept in mind when making a decision whether to help a war winner engage in social reconstruction.

When it comes to United Nations involvement post-conflict, the UN does have much relevant, and recent, experience (e.g., in East Timor) which it

would be wise to draw upon. Is such experience *needed* to confer legitimacy upon post-conflict reconstruction? I do not think so: the UN, while seasoned, has had some sour experiences as well, especially in African conflicts ranging from Congo to Somalia to Rwanda. The UN has also recently been involved in serious corruption scandals, so there is no guarantee that multilateralism ensures integrity in the process.³⁰ The exclusivity of such UN bodies as the Security Council also raises questions regarding its political—as opposed to legal—legitimacy. There is also the probability of success issue. On the one hand, you do want lots of resources, support and diverse expertise; on the other, too many cooks can spoil the broth. Is the Afghani reconstruction—featuring the UN and many countries—going much better than the Iraqi? To those in the know, not obviously so. The Taliban are not in power but still exist, especially in rural Afghanistan; most of the reconstruction is centred only around the capital, Kabul; rival clan lords retain armed militias, posing security threats; and there has been a failure to develop the legitimate economy, driving local farmers to poppy production, which feeds heroin addiction and provides illegal drug lords with resources and power.³¹ Part of this checkered record, of course, is the sheer difficulty of the enterprise—which we should never underestimate—but another part might be that responsibility so widely divided can leave actors with insufficient incentive for ensuring overall success. In my view, fewer people worry about Afghanistan, despite its severe difficulties, because there is larger consensus on the justice of that war and accompanying regime change. Contrast this with the Iraq case, where the whole enterprise substantially rests on the shoulders of the Iraqis and the Americans. American prestige and possibly security are on the line, and the Iraqis have their very futures at stake. This illustrates, for me, that the key relationship in reconstruction always boils down to that between the war winner and the local population: they each bear big burdens, and the involvement of both is essential for enduring, successful reform.

Resistance

We should predict a rough ride, especially at the beginning. Regime holdouts, fanatics of various stripes, criminal elements and foreign destabilizers might all actively resist forcible regime change, even if the initial war was clearly just. Assuming it was so, the war winner is entitled to combat the resistance, and embark on a “hearts and minds” campaign to win holdouts over. But if for some reason the resistance genuinely takes on the character of widespread public resistance and *uprising* to occupation, then careful consideration must be made of what to do next. Fact-finding is vital here: if the resistance is illegitimate—composed of those elements listed above—then it is legitimate to stamp it out, or at least control it through military and police measures. Social reconstruction is hugely difficult—but hugely worthwhile if successful. One cannot just turn tail and run in the face of some car bombings

and kidnappings. That would, irresponsibly, create an incentive in favour of violent resistance and be a breach of faith with the interests of the majority of the local population. One also cannot allow the rebirth of a regime failing minimal justice—or else what was the point of the war? But if the resistance becomes deep, patterned and genuinely widespread—involving things like general strikes, commercial and political boycotts, and regular mass protests—then clearly a change of strategy is demanded, almost certainly including a stepped-up transfer of sovereignty. The devil here is truly in the details of the case, and none of us should envy policymakers who must decide when the resistance is rough but illegitimate, and when it becomes so serious that justice demands a radical policy shift. Much of how the resistance question plays out, in my view, will be affected by perceptions of the justice of the war to begin with. There is simply no escaping the interconnections, here as elsewhere.

Aiming at Regime Change from the Start

This perspective on rehabilitation—calling for disarmament, institutional reform, political transformation and infrastructure investments—brings into focus important questions. Does it follow from all the above that the imposition of rehabilitation on an aggressor is itself a legitimate war aim? In other words, may a state set out, from the start of the war, *not only* to vindicate violated rights but, *moreover*, to impose institutional therapy upon the aggressor? If so, Walzer asks, what does that imply in terms of the use of force *during* war, since being in a position to impose institutional therapy after the war is at least linked to, and may even depend on, the achievement of a certain degree of military superiority at war's end? The therapy requires the strength to see it through. My sense is that the imposition of institutional therapy on an aggressor is consistent with, even implied by, the overall goal of a justified war argued for last chapter, namely, rights vindication constrained by a proportionate policy on surrender. The therapy is justly invoked when required to prevent future aggression and to enable the defeated community to meet the requirements of minimal justice. In terms of war-fighting, having regime change and rehabilitation as a war goal does *not* somehow diminish the responsibility to fight in accord with the *jus in bello* rules of right conduct. The importance of the end does not lessen the constraints just communities face when they vindicate their rights by force. Will insistence on rehabilitation as part of war settlement itself prolong the fighting? While it might do so as a matter of fact—relative to a less stringent or unjust settlement offer—seeing it through is not wrong *provided* the fighting continues to respect *jus in bello*. The duty falls on Aggressor to agree to reasonable terms of rehabilitation, not on Victim/Vindicator to avoid seeking those means necessary to secure adherence to them. Besides, as previously noted with reference to cases, the bringing of rehabilitation does not demand the infliction of a crushing military defeat upon the Aggressor.

Containment Instead of Change?

What of those who suggest that, instead of all these dramatic post-war regime transformations, we should settle for “merely” defeating and *containing* aggressors? Let’s not muck around with the very structures of their society; let’s simply defeat the aggressor regime and de-fang it, so to speak, so that it cannot cause more problems in the foreseeable future. Note, as Walzer does, that this recommendation makes no sense with humanitarian intervention. For in such a case, it is precisely the depravity of the regime which invites the military manoeuvres. It makes no sense to leave such a regime in place following its defeat: *regime transformation is needed to stop the very crisis in question*. So, the containment option only comes up in instances of cross-border aggression. How, in this regard, to compare and evaluate the merits of containment versus reconstruction and rehabilitation?

The core, defining difference between containment and reconstruction is this: with containment, one leaves the defeated regime in power whereas with rehabilitation, one ejects the regime and guides the process for creating a new one. A logically lesser distinction, but still a substantial one, is that containment is mainly concerned with preventing future *cross-border* aggression on the part of the defeated regime whereas rehabilitation is concerned not just with that *but also* with transforming the regime in a way which benefits the domestic citizenry. These further differences get us close to the Oxford English Dictionary definitions of the split in approach: containment means “to hold within itself, or to prevent from moving or extending” whereas rehabilitation means “to restore to effectiveness, or normal life, or proper condition by training, especially after prison or illness.” Clearly, rehabilitation is a more ambitious policy. But is it more costly? Is it recklessly risky? Is it better?

Let us first note one large area of agreement between containment and rehabilitation. This is the need to disarm the defeated regime. This suits both aims of preventing future aggression by the regime as well as, quite often, breaking its main source of domestic power. There is thus widespread consensus on the need for such common post-war disarmament measures as: chopping the defeated regime’s armed forces; capping future military capability; creating buffer zones between the regime and other countries; and cataloguing and destroying its weapons, especially those of mass destruction. We noted this last chapter.

It is after military disarmament where the models split. Consider that when a decision to contain is made, the question of war crimes trials goes out the window. This was, for instance, never brought up in the 1991 Persian Gulf War settlement. After all, you’re leaving the regime in power, so you cannot insist that its top people surrender to a war crimes tribunal. Conversely, when you decide to rehabilitate, you keep this option open. We think of historical links between rehabilitation and war crimes (or crimes against humanity) tribunals, whether at Nuremberg, Tokyo or The Hague. This morally marks one up for rehabilitation over containment: containment sacrifices

some justice for what it thinks is expediency. While war crimes trials can cause pain within a political community, so too can a failure to have them. Trials also de-legitimize unjust regimes in a way that inaction, obviously, never can.

There is a huge difference between the two models regarding the treatment of the defeated country's economy. The logical goal of the containment model is to cut, or at least to limit, the target regime's resources so as to clip its capabilities for future aggression. Thus, some form of economic punishment, or at least non-engagement, is called for. The 1991 settlement terms of the Persian Gulf War left intact the sweeping socio-economic sanctions levelled after Iraq's original invasion of Kuwait in 1990, and they also required Iraq to pay compensation to Kuwait, out of future Iraqi oil sales. The result of the sanctions was a humanitarian disaster for the Iraqi people throughout the 1990s. This disaster was the result not just of poor treaty drafting, but of the logic of containment itself. The treaty drafters, of course, should have known that civilian welfare was not a priority for Saddam, and so leaving it up to him was either naïve or callous. The deeper point is that, because containment's focus is on preventing cross-border aggression, it is much more *insensitive* to local civilian suffering than many people want to admit. Since containment wishes to cut the regime's resources, this will necessarily leave less for civilians. And if nothing is done to change a regime which does not much care for its civilians, then material deprivation amongst the civilian population is *a predictable consequence of containment*. It is not just Iraq: there is no doubt, for instance, that American containment during the Cold War contributed to real economic hardships in such communist countries as Cuba. With containment resources are essentially sucked out of the regime, whereas with rehabilitation the resources flow the other way: *into* the defeated country to aid in reconstruction and to ensure that the new regime can enjoy popular support without threat of backsliding into injustice and illegitimacy. This, we noted, is what is currently happening in Iraq and Afghanistan—though whether the amount of resources is sufficient might be wondered at—and of course it also happened, to great success, with Germany and Japan in the post-1945 period.

Another myth about containment is that it is non-violent, or at least relative to rehabilitation. The Iraq experience casts a cloud of doubt over this. First, the sanctions arguably *were* violent—inflicting physical harm—and in an indiscriminate way. Say what you will about forcible regime change, but taking out a regime with force is much more discriminating than slowly starving a country of resources. Now, there obviously is *more* military force involved in rehabilitation over containment, *but* it can be more discriminating. And even the military equation is not entirely obvious. There were over two dozen military clashes, and one major combat operation, between America and Iraq during the containment phase from 1991 to 2003. These episodes generated scores of casualties, including some civilians. The violence and

casualties can be predicted because the terms of containment, to be effective, need to be enforced. In Iraq's case, the no-fly-zones and the weapons inspection process both required repeated military enforcement.

Military clashes during containment can also be predicted out of frustration with what are often *open-ended*, long-lasting containment procedures. The recent containment of Iraq lasted twelve years, and only ended because America decided to attack instead. The reconstruction of Germany and Japan, by contrast—enormous undertakings—lasted about ten years each. Containment is open-ended because its end is “negative”—merely preventive—as opposed to the “positive” goal of reconstruction in rehabilitation's case. *How do you know when to stop the containment?* The only sure answer seems to be: when the regime has changed. But that is precisely what rehabilitation seeks to do directly right from the start. As Walzer puts it perceptively, and concisely, “(l)egitimacy and closure are the two criteria against which we can test war's endings.”³²

Some people suggest that containment is more respectful of state rights to political sovereignty and territorial integrity than is rehabilitation. But consider that permissible reconstruction gets rid of an illegitimate, rights-violating regime, thereby enabling *greater* political participation and thus expression of national sovereignty. Illegitimate regimes, we have established, have no right to govern, and their removal enables all kinds—even democratic kinds—of expressions of national sovereignty. There are also the human rights of individuals to account for, too, and in that regard the containment model must answer for its insensitivity to continued civilian suffering under the illegitimate regime which it allows to continue. Trading human rights violations for respecting state rights is not exactly a bargain to be bragging about.

Other people worry that rehabilitation is more costly and risky: *cost* in the form of overthrowing the regime and rebuilding the economy; and *risk* in the form of possibly botching reconstruction, leading to backsliding into illegitimacy or perhaps even civil war. These admittedly real risks of rehabilitation—bitingly real in Iraq—are somewhat mitigated by the fact that we *do* know the basic recipe for sound rehabilitation, discussed above. And we cannot forget that containment *has its own costs and risks*: the *cost* of enforcing containment, both financially and militarily; the *risk* that civilians will continue to suffer material deprivations and rights violations, perhaps even more so under the straightened circumstances of containment; the risk that containment will be needed indefinitely; or the risk that containment will be ineffective and that armed conflict and forcible regime change will be needed anyway, as clearly seems to have been the case recently with the Taliban in Afghanistan and with Milosevic in Serbia. Was the containment of Saddam a success? It may have stripped him of WMD, and Iraq did not seem to commit international aggression during those years—real achievements. But it did nothing to help the Iraqi people, and may have actually hurt them. If Iraq's containment was a success, clearly it was of a checkered kind.

Now, I'm *not* an apologist for Bush Jr. and the 2003 Iraq attack. *I have already raised real doubts about the justice of his Iraq intervention, and I fear he will pull out of Iraq and Afghanistan* instead of seeing them through on the seven to ten year scale the Dobbins Report establishes. And I'm *not* saying America's post-war policy in Iraq is just. In Afghanistan, it has the chance of being just because the war to begin with was just. But the war in Iraq was probably unjust, and so the best the USA can hope for is to leave Iraq better off than how it found it. (Recall our discussion last chapter that, to be fully just, post-war reconstruction must not only produce good results but also have violated no rights and to have respected procedural rules of fairness. But, since it was an unjust war, it violated those rules and rights, and so the best that can be hoped for is some good consequences—better institutions, etc.—but never complete justice.) America still has to be held up to the standards of post-war justice in Iraq—and it *can* do better or worse by them—but it *cannot ever fully* satisfy them because of how the war started.

My point here is this: the rewards for good rehabilitation are *greater than* those of good containment, and so the greater risk can be reconceived as a more promising investment. We all know greater returns can only be had by assuming greater risks. And the return on good containment is, so to speak, merely negative: there is *no more* cross-border aggression. But with good rehabilitation you get not only that *but also* a better life for the civilians, greater rights realization and a more secure international order.

In the end, our attitudes about containment versus rehabilitation boil down to two issues: war and governance. These are intimately connected, both historically and because war *is* ultimately about governance (i.e., about who gets to decide what goes on in a given territory). Defenders of containment are willing to tolerate an illegitimate and rights-violating regime *in exchange for* the avoidance of war. But there are moral reasons, sometimes, to doubt this tolerance. First, it is quite easy, perhaps smug, to tolerate *somebody else's* terrible regime. Second, there are good reasons to believe that terrible regimes eventually produce war anyway, and so containment merely postpones the inevitable. Which good reasons are these? First, historical ones: there is heavy empirical evidence that rights-violating regimes go on to attack others. Think of Mussolini, Hitler, Hirohito, Stalin, Kim Il Sung, Pol Pot, Idi Amin, Saddam and Milosevic. Second, conceptual reasons. As Kant noted, if regimes are willing to violate the rights of their own citizens, why would they hesitate to do the same with foreigners, as soon as they are capable and willing? *It is the regime which needs changing and rehabilitation recognizes this, whereas containment does not.* At best, containment recognizes this but somehow views the tools of containment as better at achieving this than the tools of rehabilitation. *This might, admittedly, be the case when the regime in question has nuclear weapons, as in the Cold War.* I do not deny that containment *sometimes* makes great sense, for instance when the probability of success for regime overthrow and reconstruction are minimal or when the

quantum of force needed to break the regime is simply too great, as in any nuclear case. But when these obstacles do *not* hold, I have suggested here that containment's tools are dull and slow, whereas those of rehabilitation are sharper and quicker. Containment's tools are not cheap, nor are they risk-free. They are not even non-violent. They probably also avoid justice for mere expediency. Above all, containment's measures are more indiscriminate and insensitive to civilian suffering.

This all suggests that, in *some* cases of defeating an illegitimate regime in war, reconstruction is preferable to mere containment. I'm *not* going so far as to say it is a duty to choose the former over the latter—I believe it is an option, and contingent upon the opportunities circumstances make available. There are the other just war rules to consider, too, notably probability of success and proportionality: is the regime really that bad? And will rehabilitating it likely achieve minimal justice? All I'm saying here is that there are strong *general* reasons for preferring reconstruction over containment, reasons which might be defeasible in *particular* instances.

Summary

There have been successful pro-rights, post-war regime changes, and these make us mindful of an important option when wars end. Forcible regime change is permissible when the war itself was just, when it violates no rights, and when it promises the good consequences of instituting a minimally just regime. To that extent, aiming to impose rehabilitation right from the start of a just war is permissible, too. Without excluding the international community, the key reconstruction relationship is that between the war winner and the local population. The war winner occupies a position of enormous power and therefore trust, and is duty bound to follow the recipe and to work with and nurture local leadership. The locals, for their part, must commit themselves to peace, to good faith interaction with each other and, above all, to the development of a minimally just regime. Some resistance should be expected and the huge difficulties acknowledged—perhaps only partial realization of the ideal is possible. That is still better than nothing—or worse, not even trying—and in fact might be a reasonable definition of progress in such difficult circumstances.

Notes

1. I. Kant, *The Metaphysics of Morals*, trans. H.B. Nisbet in H. Reiss, ed. *Kant: Political Writings* (Cambridge: Cambridge University Press, 1991), p. 170.
2. D. Abernathy, *The Dynamics of Global Dominance* (New Haven: Yale University Press, 2001); I. Eland, *The Empire Has No Clothes* (Oakland: The Independent Institute, 2004).
3. N. Ferguson, *Empire* (New York: Basic Books, 2002); N. Ferguson, *Colossus* (New York: Basic Books, 2004).

4. B. Kiernan, *The Pol Pot Regime* (New Haven: Yale University Press, 1998); J. Holzgrefe and R. Keohane, eds. *Humanitarian Intervention* (Cambridge: Cambridge University Press, 2003).
5. J. Dobbins, et al, *America's Role in Nation-Building: From Germany to Iraq* (Washington: RAND, 2003); R. Regan, *Just War: Principles and Cases* (Washington: Catholic University of America Press, 1996).
6. Some especially useful ex-Nazis were provided safe havens in the West, particularly those who were working on Hitler's rocket program.
7. Only very gradually and cautiously was the construction of a German and Japanese military undertaken. Even today, it is extremely controversial domestically when the German or Japanese military is called into action. The constitution of each country forbids its participation in offensive wars, and generally confines any military participation to a purely defensive, or at most peacekeeping, role.
8. Of course, the Germans and Japanese were already acquainted with advanced industrial—especially wartime—production. But the Americans aided economic growth vastly with the new business theories of the 1950s, informed by best practices discovered during the war.
9. L.V. Segal, *Fighting to the Finish: The Politics of War Termination in America and Japan* (Ithaca: Cornell University Press, 1989); H. Schonberger, *Aftermath of War: Americans and The Remaking of Japan* (Ohio: Kent State University Press, 1989); M. Schaller, *The American Occupation of Japan* (Oxford: Oxford University Press, 1987); and E. Davidson, *The Death and Life of Germany: An Account of the American Occupation* (St. Louis: University of Missouri Press, 1999).
10. B. Orend, *War and International Justice: A Kantian Perspective* (Waterloo, ON: Wilfrid Laurier University Press, 2000).
11. Kant, *Metaphysics*, 169–71.
12. A. Arato, "Imposing a Constitution on Iraq," *Ethics and International Affairs* (2004), 25–50.
13. Kant, *Metaphysics*, with both quotes at 170.
14. Dobbins, et al, *Nation-Building*, *passim*.
15. Dobbins, *Nation-Building*; R.S. Jennings, *The Road Ahead* (Washington, DC: United States Institute of Peace, 2003); A. Donini, ed. *Nation-Building Unravellled?* (New York: International Peace Academy, 2004); and J. Dobbins and S. Jones, eds. *The United Nations' Role in Nation-Building* (Forthcoming from the RAND Corporation).
16. S. Chesterman, "Occupation as Liberation: International Humanitarian Law and Regime Change," *Ethics and International Affairs* (2004), 51–64 with quote at 54.
17. International Commission on Intervention and State Sovereignty, *The Responsibility to Protect* (Ottawa: International Development Research Institute, 2001), 40–1; K. Annan, *The Causes of Conflict and The Promotion of Durable Peace in Africa* (New York: United Nations, 1998); R. Scarborough, *Rumsfeld's War* (New York: Regnery, 2004).

18. J. Traub, "Making Sense of the Mission," *New York Times Magazine* (April 11, 2004), 36.
19. A. Arato, "Constitution-Making in Iraq," *Dissent* (Spring, 2004) 32–6; A. Arato, *Civil Society, Constitution and Legitimacy* (Lanham, MD: Rowman Littlefield, 2000).
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21. M. Boemeke, et al, eds., *The Treaty of Versailles* (Cambridge: Cambridge University Press, 1998); A. Arnove and A. Abunimeh, eds. *Iraq Under Siege* (London: South End, 2000).
22. See, e.g., <www.unicef.org/girlseducation/index.html>.
23. M. Walzer, *Arguing About War* (New Haven: Yale University Press, 2004), 164–5.
24. W. Nash, quoted in Traub, "Making Sense," 35.
25. J. Glover, *Humanity: A Moral History of the 20th Century* (New Haven, CT: Yale University Press, 2001).
26. L. Hunt, ed. *The French Revolution and Human Rights* (London: Bedford, 1996).
27. T. Dodge, *Inventing Iraq* (New York: Columbia University Press, 2003).
28. Dobbins, *Nation-Building*; Dobbins, *United Nations*; Traub, "Making Sense," 32–62.
29. ICISS, *Protect*, 44–5; UN Charter, Articles 73 and 74.
30. R. Dallaire, *Shake Hands with the Devil* (Toronto: Random House, 2003); K. Cain, et al, *Emergency Sex and Other Desperate Measures* (New York: Miramax, 2003).
31. Traub, "Making Sense," 32–62.
32. Walzer, *Arguing*, 20.